UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF INDIANA
INDIANAPOLIS DIVISION

LIGHTNING ROD MUTUAL INSURANCE COMPANY,	)	
Plaintiff,	)	CASE NO. _____
v.	)	
HER HOME DESIGN BUILD, LLC, KEIANNA RAE HARRISON, VICKY EVANS and MARCUS EVANS,	)	
Defendants.	)	

COMPLAINT FOR DECLARATORY JUDGMENT

Plaintiff, Lightning Rod Mutual Insurance Company ("Lightning Rod"), by counsel, for its Complaint for Declaratory Judgment, states as follows:

THE PARTIES

1. Lightning Rod is a Mutual insurance company incorporated in Ohio (which treats mutual insurance companies as corporations), with its principal place of business in the State of Ohio. It is licensed to conduct business in the State of Indiana.

2. Defendant HER Home Design Build, LLC ("HER") is an Indiana limited liability company with its principal office located at 4400 W. 96th Street, Indianapolis, Marion County, Indiana, 46268.

3. HER's registered agent for service of process is Registered Agents, Inc., 5534 Saint Joe Road, Fort Wayne, Indiana, 46835.

4. Upon information and belief, Defendant Keianna Rae Harrison ("Harrison") is the sole owner and member of HER.

5. Harrison is an adult and believed to be a resident of Marion County, Indiana.

6. Vicky Evans and Marcus Evans (collectively, "the Evanses") are adults and residents of Marion County, Indiana.

7. The Evanses are the owners of real property located at 8425 Wicklow Way, Brownsburg, Hendricks County, Indiana.

8. The Evanses filed a civil action against HER and Harrison which is currently pending in Hendricks County, Indiana, and discussed further below ("the Evanses' lawsuit"). The Evanses are named herein as interested parties pursuant to 28 U.S.C. § 2201, as their rights may be affected by the outcome of this action.

JURISDICTION AND VENUE

9. There exists an actual, present controversy between the parties with respect to the parties' relative rights and obligations under an insurance contract which Lightning Rod issued to HER with respect to the Evanses' lawsuit.

10. This Honorable Court has jurisdiction over this action based on the full diversity of citizenship between the parties, pursuant to 28 U.S.C. §§ 1332 and 1441. Lightning Rod is a citizen of Ohio for purpose of determining jurisdiction, while all the defendants are citizens of Indiana.

11. The amount in controversy between the parties exceeds $75,000.00, exclusive of interest and costs.

12. This court has jurisdiction over this action, pursuant to 28 U.S.C. § 1331.

13. Venue is proper in this district pursuant to 28 U.S.C. § 1391(a), as the insurance contract was issued to HER at its principal place of business in Marion County; the acts and/or omissions giving rise to the claims being litigated herein arose from real property in Hendricks County; and the Evanses' lawsuit is pending in Hendricks County. Both Marion and Hendricks County are located within the present division.

FACTUAL BACKGROUND

14. On April of 2024, the Evanses met with Harrison to discuss hiring Harrison's business, HER, to perform renovations on the Evanses' Brownsburg residence.

15. According to the Evanses, Harrison held herself out to be an "experienced real estate flipper/rehabber."

16. Following the April 2024 meeting, and allegedly in reliance on representations made during that meeting, the Evanses decided to hire Harrison and/or HER to conduct the renovations.

17. On April 30, 2024, the Evanses entered into a "HER Home Design BUILD Contract" which was prepared by Harrison and signed by Vicky Evans. A true and accurate copy of this contract is attached hereto as Exhibit A.

18. The contract called for three payments, totaling $85,587.25; one payment was due at the start of the project, one at the trim carpentry stage, and one at the conclusion of the project.

19. The contract indicated that it was expected that the project would take approximately 50 business days, until July 15, 2024, absent any construction challenges outside the control of HER and/or Harrison.

20. The contract was not signed by Harrison or by anyone on behalf of HER.

21. According to the Evanses, the Evanses paid the first two payments as specified by the contract.

22. According to the Evanses, by early 2025, the project was not yet completed, and the Evanses told HER and/or Harrison that they were dissatisfied.

23. According to the Evanses, HER and/or Harrison stopped work on the project and demanded the balance due. The Evanses had already paid the first two installments.

24. According to the Evanses, HER and/or Harrison then placed a mechanic's lien on the residence for an amount greater than the contracted-for amount of the final installment.

25. The Evanses paid HER and/or Harrison the sum of $18,704.00 in order to remove the mechanic's lien which was encumbering their residence.

26. The Evanses proceeded to file their lawsuit against Harrison and HER in the Hendricks Superior Court, cause number 32C01-2601-CT-000011. A true and accurate copy of their Complaint and Demand for Jury Trial ("Complaint") is attached hereto as Exhibit B.

27. In the Complaint, the Evanses alleged that Harrison and HER "provided shoddy and poor quality workmanship," including electrical plumbing work that was not up to code and

a dog wash design that was "botched;" "provid[ed] a rotating cast of 'project managers' and hir[ed] individuals with apparently no English proficiency"; charged extra amounts for work which the Evanses considered to be included; charged for work which was not performed; and retained materials for which the Evanses had already paid. See Exh. B., ¶¶ 21-24.

28. The Evanses further alleged that, as a result of the actions of Harrison and HER, they were deprived of the use of their home, sustained emotional distress and mental anguish, and would have to incur thousands of dollars to repair the defective workmanship on their home. Id. at ¶¶ 27-29.

29. The Complaint included eleven causes of action against Harrison and HER.

30. Counts One through Four contained allegations that Harrison and HER violated the Home Improvement Contract Act ("HICA") and Deceptive Consumer Sales Act, specifically by failing to notify them of their right to cancel the contract (Count One); stating a false completion deadline (Count Two); failing to provide a fully executed contract (Count Three); and failing to provide a reasonably detailed description of the proposed improvements to their residence (Count Four).

31. In Counts One through Four, the Evanses alleged that Harrison's and HER's violation of these two statutes "was part of their scheme, artifice, or device made with intent to defraud or mislead Plaintiffs by procuring their assent to the contract." Id. at ¶¶ 34, 38, 42, and 46.

32. In Counts One through Four, the Evans sought their actual damages, which consisted of a refund of the total sums they paid to Harrison and HER, along with treble damages for their "willful violation of HICA," and reasonable attorney fees. Id. at ¶¶ 36, 40, 44, and 48.

33. In Count Five, the Evanses alleged that Harrison and HER placed a mechanic's lien on their residence and that, in doing so, they "overstated the amount they claimed was due and did so intentionally and/or with culpable negligence, rendering the lien void." Id. at ¶¶ 49-50.

34. The relief sought in Count Five was the recovery of the amount the Evanses paid to remove the lien. Id. at ¶ 53.

35. In Count Six, the Evanses claimed that Harrison and HER were unjustly enriched by their retention of the funds the Evanses paid them and the materials that the Evanses purchased and Harrison and/or HER allegedly retained. Id. at ¶¶ 54-55.

36. In Counts Seven and Eight, the Evanses alleged that Harrison and HER materially breached the contract and the warranty of their work by not performing the work on time and performing it with poor craftsmanship. Id. at ¶¶ 56-57 and 59.

THE INSURANCE CONTRACT

37. Lightning Rod issued a businessowners policy, policy number BOP0005016689, which was in force from September 8, 2023, to September 8, 2024, which included HER as a named insured ("the insurance contract"). A true and accurate copy of the insurance contract is attached hereto as Exhibit C.

38. The main coverage form in that insurance contract included the following relevant provisions:

> SECTION II – LIABILITY. A. Coverages. 1. Business Liability. a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "bodily injury", "property damage" or "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. . . .

39. The following relevant definitions are contained within the Lightning Rod insurance contract:

> (3) "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.
>
> (13) "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

40. For coverage to exist under the insurance contract, the Evanses' complaint must seek damages resulting from "bodily injury" and/or "property damage" arising out of an

occurrence and/or resulting from "personal and advertising injury" arising out of the insured's business.

41. The allegations raised in the Evanses' complaint arise out of HER's and/or Harrison's alleged failure to perform the contracted-for work on time and in a workmanlike manner.

42. The Evanses did not allege in their complaint that they sustained any "personal and advertising injury," as that term is defined, as a result of HER's and Harrison's conduct.

43. The Evanses further did not claim that they sustained any "bodily injury" as that term is defined in the insurance contract.

44. The Evanses did not contend that they sustained any physical injury to tangible property, as referenced in paragraph a. of the definition of "property damage."

45. To the extent that the Evanses' complaint could be viewed as alleging loss of use of tangible property that is not injured, and thereby "property damage," such property damage must result from an "occurrence."

46. Throughout their complaint, the Evanses frequently alleged that HER and Harrison acted willfully, knowingly, intentionally, and/or with an intent to defraud or mislead. Such conduct cannot constitute an "occurrence" as that term is defined in the insurance contract.

47. A breach of contract or breach of warranty is not an "occurrence" as that term is defined in the insurance contract.

48. The failure of a party to fulfill the terms of a contract is not an "occurrence" as that term is defined in the insurance contract.

49. The failure of a party to comply with the standard of care for that profession is not an "occurrence" as that term is defined in the insurance contract.

REQUEST FOR RELIEF

WHEREFORE, Lightning Rod Mutual Insurance Company respectfully seeks an Order from this Honorable Court:

1. Declaring that the businessowners insurance contract it issued to HER Home Design provides no coverage with respect to the claims alleged by Vicky and Marcus Evans in their complaint, and that Lightning Rod owes no indemnity obligation under the insurance contract;
2. Declaring that Lightning Rod has no duty to defend HER Home Design against the Evanses' lawsuit;
3. Declaring that Lightning Rod has no duty to defend Keianna Rae Harrison against the Evanses' lawsuit; and
4. Awarding all other just and proper relief.

Dated: _____, 2026

Respectfully submitted,

WATERS, TYLER,
HOFMANN & SCOTT, LLC

By: /s/ Tricia K. Hofmann
Tricia K. Hofmann, Atty. #20480-46

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